NATIONAL EMPLOYMENT COUNCIL FOR THE
COMMUNICATIONS AND ALLIED SERVICES
versus
ECONET WIRELESS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 20 and 22 May 2026

Opposed Application

C. Mucheche, for the applicant
M. Mbuyisa, for the respondent

MAMBARA J:

[1] There is an old saying that when the village drum has sounded in every homestead, the absent elder cannot continue to say he did not hear the call. This matter concerns a call that has been sounded repeatedly: first in the statute book, then in earlier litigation, then again by amendment of the law, and yet still the respondent remains on the fence.

[2] The applicant seeks a compelling order against the respondent for the remittance of statutory dues under the Collective Bargaining Agreement for the Communications and Allied Services Industry, Statutory Instrument 1 of 2012, read with the Labour Amendment Act, 2023. Mr *C Mucheche* appeared for the applicant. Mr *M Mbuyisa* appeared for the respondent. Each counsel lucidly presented his client's case.

[3] This is not the first visit these parties have paid to the courts on this subject. The papers before me expressly refer to earlier High Court proceedings and to the later Supreme Court appeal in *Econet Wireless (Pvt) Ltd* v *Minister of Public Service, Labour and Social Welfare* & Others SC 31/16. The respondent has therefore litigated this terrain before. The novelty in the present matter is not the respondent's resistance. The novelty lies in the legislature's answer to it.

[4] In the earlier MAKONI J judgment attached to the record, Econet challenged the legality of the NEC's registration history and the promulgation of the relevant CBA, while remaining outside the statutory scheme. The learned judge withheld the court's jurisdiction until Econet complied with the law, relying on the principle that a litigant cannot seek the court's aid while in open non-compliance with a subsisting law. The Supreme Court dismissed Econet's later appeal and endorsed the same rule-of-law premise.

[5] The Supreme Court in that earlier matter placed the principle beyond polite debate. It accepted that every subsisting law is presumed valid and binding until lawfully set aside, approved the proposition that citizens must obey the law and argue afterwards, and quoted Lord Radcliffe's well-known observation in *Smith* v *East Elloe* that an order bears no brand of illegality on its forehead and remains effective until quashed by proper process.

[6] That earlier history matters here for two reasons. It shows, first, that the respondent has long known that its industry placement within this labour regime was not a passing administrative misunderstanding. It shows, second, that the respondent's present posture is not born of surprise but of persistence.

[7] The issues for determination are these: whether the applicant has established a clear right to the remittance of dues; whether the respondent bears a corresponding legal duty; whether the respondent's constitutional rights under sections 58 and 65 of the Constitution suspend that duty until it is first admitted, represented or otherwise structurally accommodated to its satisfaction; whether the grading and First Schedule arguments defeat the application; whether the absence of employees as parties bars relief; and what order should follow.

[8] The constitutional starting point is sections 58 and 65. Section 58 protects freedom of assembly and association, including the right not to associate. Section 65 protects labour rights, including the rights of employees, employers, trade unions, and employer organisations to engage in collective bargaining, to organise, and to form and join federations, while also entitling every employee to just, equitable and satisfactory conditions of work.

[9] Those rights are real and important. But rights of association are not synonymous with a right to stand in splendid isolation from a statutory labour framework applying to one's industry. Nor does the right to collective bargaining mean that every operator may freeze the

operation of an industry CBA until each operator has first achieved every preferred representational or institutional arrangement.

[10] Parliament has spoken directly to that tension. The Labour Amendment Act, 2023 substituted section 56 so that employment councils formed under that section are to be governed by the Act "in every respect as if" they were statutory employment councils. It also amended section 82 by inserting subsection (a1), which declares it to be in the public interest that just, equitable and satisfactory conditions of work be uniformly established through free collective bargaining established by law, and further declares that it is "not a lawful excuse" for those who did not avail themselves of the opportunity under section 56 to obtain direct or indirect representation to deny that they are bound by a collective bargaining agreement negotiated for their industry.

[11] That language is plain. Indeed, it could scarcely be plainer. Section 82(a1) does not merely permit the applicant's interpretation. It compels it. Parliament anticipated the very complaint advanced by the respondent, namely, that it had not yet fully entered or shaped the bargaining structure, and it expressly removed that complaint as a lawful excuse for non-compliance.

[12] The respondent's reliance on sections 58 and 65 of the Constitution therefore fails at the level of construction. Section 82(a1) (b) does not extinguish the right to collective bargaining. It accommodates and channels it by recognising the opportunity directly or indirectly under section 56 to obtain representation in an employment council. Read with section 56(2), the amendment transforms the old voluntariness point into a spent argument. The law now does two things at once: it safeguards the opportunity for representation and bargaining, and it preserves the binding force of the industry's CBA even against those who did not take up that opportunity.

[13] There is therefore no inconsistency between sections 58 and 65 of the Constitution, on the one hand, and the amended Labour Act, on the other. Section 58 protects against being compelled to belong to an association. Nothing in the present order compels the respondent to join a particular employers' association. Section 65(5) protects the right to engage in collective bargaining. The amendment expressly preserves that right by affording a route to representation under section 56. What the Constitution does not protect is a supposed right to

ignore a binding industry CBA while continuing to operate within the industry to which it applies.

[14] The respondent argued that the NEC was formed before it came into being and that fairness required its admission before dues could be exacted. That submission might once have held rhetorical appeal. It no longer withstands the text of the amended Act. Parliament altered section 56 precisely so that section 56 councils operate as if statutory, and section 82(a1) was inserted precisely to prevent incumbency or non-participation from being deployed as a shield against industry-wide obligations.

[15] The applicant's answering affidavit and the attachments to the record add a further answer. They show that the NEC constitution was amended on 28 February 2024, that the amended constitution was later furnished to the respondent, and that the amended admission rules now permit any employers association or organisation within the industry willing to join to be eligible for membership and pro-rata representation. The very barrier on which the respondent rested much of its complaint was thus removed.

[16] I therefore reject the submission that the respondent's collective-bargaining rights were ignored. At the level of statute, those rights were expressly recognised and accommodated. At the level of institutional documents, the admission regime was amended. What the respondent really claims is not the denial of a constitutional right, but a preferred sequencing: "first satisfy me in every institutional detail, then the law may bind me." The amendment does not permit that sequencing.

[17] A sectoral giant is not licensed to behave as though labour legislation binds only the smaller players and reaches the largest one only by invitation. The law does not recognise a hierarchy of obedience in which the biggest actor may wait upon bespoke comfort before entering the common regime. The record reveals a posture of exceptionalism. The law recognises none.

[18] The CBA and NEC constitution reinforce the applicant's clear right. The papers place before the court the dues clause in section 33(3) of the CBA, to the effect that each employee pays 1% of basic wage or salary and the employer contributes a like 1% for the same employee. The NEC constitution further provides that the council's operations are financed

by levies on employers and employees, that employers pay a levy equal to the employee levy, and that the council may sue for and recover outstanding levies and other dues.

[19] On the papers, both sides also accept that the CBA applies to non-managerial employees. In its answering affidavit the applicant expressly accepted that the order should be confined accordingly. That is the proper course. It resolves the respondent's complaint that the claim had impermissibly swept in managerial employees.

[20] I also reject the respondent's reliance on the grading and First Schedule point. The applicant's answering affidavit states, and I accept, that the grading provisions in section 4 of the CBA set minimum standards, whereas the dues clause in section 33(3) operates on an employee's basic wage or salary. In other words, the levy is not suspended merely because the employer has not cooperated in fitting positions into the NEC's grading architecture. To hold otherwise would be to reward non-engagement by making it the lever for continued non-compliance.

[21] The respondent submitted that the employees were not before the court and that no decision should be made affecting them. The answer is twofold. First, the respondent's obligation to remit dues is a statutory obligation owed under the governing labour framework. Second, the court is not here altering individual conditions of service; it is enforcing compliance with an existing legal regime. To the extent that any internal deduction or salary-structuring issue may arise between the respondent and its employees, that is a downstream matter to be handled lawfully by the respondent. It is not a reason to deny the applicant the enforcement of a present statutory right. That conclusion is, in part, an inference from the nature of the continuing statutory scheme and the dues mechanism pleaded in the record.

[22] The respondent also argued that what is truly before the court is debt collection masquerading as mandamus, and that mandamus does not lie for past wrongs. I do not accept that characterisation. The wrong in question is not merely historical. It is continuing. Each month that the respondent fails to remit the dues required by the governing regime, the breach continues. An order compelling performance of a continuing legal duty, together with payment of the arrears that accrued because that duty was continuously ignored, remains a species of specific enforcement well within this court's power.

[23] *Mayor Logistics* v *ZIMRA CCZ 7*/14 is therefore distinguishable. That case concerned an attempt to suspend the operation of existing fiscal legislation through interim relief while other proceedings ran their course. The Constitutional Court emphasised that an interdict is ordinarily aimed at preventing continuing or future unlawful conduct and noted that the impugned fiscal provisions were binding when the revenue authority acted. This matter is the converse. The applicant asks this court to enforce a statutory duty that is currently binding, not to suspend one.

[24] The requirements for final mandatory relief are met. The applicant has a clear right arising from the CBA, the NEC framework, and, decisively, sections 56 and 82 as amended. The respondent bears a corresponding legal duty. The applicant has shown continuing injury in the form of persistent non-remittance of statutory dues required for the NEC to perform its sectoral functions. And there is no adequate alternative remedy shown on the papers. Zimbabwean authority continues to state those requirements in orthodox terms.

[25] And if any residual doubt remained, the respondent's own litigation history ends it. In substance, the respondent invites this court to revisit, through a new doorway, the old proposition that it may resist a labour regime while continuing to operate within the very industry for which that regime was established. The attached MAKONI J and Supreme Court judgments show that door was shut years ago. Parliament has since locked it.

[26] I am alive to the respondent's submission that collective bargaining is not an empty formality and that fairness requires meaningful participation. I agree with the premise but not the conclusion. Meaningful participation is a constitutional and statutory value. Yet section 82(a1) answers how that value coexists with binding sectoral agreements: through the opportunity, directly or indirectly, to obtain representation under section 56. The statute thus chooses inclusion without paralysis, participation without unilateral veto, and uniformity without abolishing voice.

[27] Nor do the international obligations of Zimbabwe point the other way. Zimbabwe is recorded as having ratified ILO Convention No. 87 on freedom of association and Convention No. 98 on collective bargaining. Those instruments support a labour order in which workers and employers may organise and bargain, but they do not require that each employer enjoy a private opt-out from a lawful industry regime pending bespoke institutional

adjustment. To the contrary, the 2023 amendment, read fairly, is an effort to harmonise uniform labour standards with inclusive representational opportunity.

[28] One of the respondent's refrains was that the applicant wants money only. That submission is not persuasive. Institutional funding is not an embarrassing afterthought in a statutory labour scheme. It is the bloodstream of administration, dispute prevention, compliance monitoring, and the maintenance of the bargaining structure itself. A council deprived of its dues is a council disabled in its function.

[29] The respondent further suggested that because the exact monetary figure was not pleaded, final relief cannot follow. That argument ignores who created the difficulty. The applicant pleaded that the respondent had refused to provide payroll information necessary for precise quantification. A litigant cannot withhold the very data that would make a sum liquid and then complain that the claim is insufficiently quantified. The fair answer is to compel disclosure and performance.

[30] I therefore conclude that the respondent must provide the payroll material necessary for precise computation, must pay the arrears due under the CBA from the effective date pleaded by the applicant, and must comply on an ongoing monthly basis thereafter.

[31] I turn to costs. The respondent has had the benefit of prior litigation on essentially the same terrain. It has had the benefit of a statutory amendment that accommodated the very representational point upon which it had previously relied. It has had the benefit of an amended constitution widening admission routes. Still it has not complied. This is an appropriate case for the court to register its displeasure.

[32] BARTLETT J once observed in *Industrial Equity Ltd* v *Walker* 1996 (1) ZLR 269 (H) (Part 1) that "the music has stopped" and the time had come "to pay the piper." The phrase is apt here. For too long the respondent has danced around a legal duty plain enough to be read by candlelight. The era of splendid isolation is over. It is time the respondent came to the party and obeyed the law.

[33] In the result, the application succeeds.

[35] It is ordered that:

The application for a compelling order be and is hereby granted.

a) Within ten days of service of this order, the respondent shall furnish to the applicant a full and accurate schedule, with supporting payroll records, of all non-managerial employees covered by the Collective Bargaining Agreement for the Communications and Allied Services Industry, Statutory Instrument 1 of 2012, showing their basic wages or salaries month by month from 14 July 2023 to the date of this order.
b) Within twenty days after furnishing the schedule referred to in paragraph 2, the respondent shall remit to the applicant all arrear statutory dues payable in terms of section 33(3) of the said Collective Bargaining Agreement, being the employee contribution of 1% of basic wage or salary together with the employer's matching contribution of 1%, in respect of the non-managerial employees covered by that agreement, for the period 14 July 2023 to the date of payment.
c) The respondent shall thereafter remit such statutory dues monthly, in accordance with the Collective Bargaining Agreement for the Communications and Allied Services Industry, Statutory Instrument 1 of 2012, read with sections 56 and 82 of the Labour Act [*Chapter 28:01*] as amended.

For the avoidance of doubt, nothing in this order compels the respondent to join any particular employers' association; its obligation arises by law. Any internal arrangements between the respondent and its employees concerning the mechanics of future deductions shall be handled lawfully and shall not suspend compliance with this order.

d) The respondent shall pay the costs of suit on the scale of legal practitioner and client.

MAMBARA J……

Caleb Mucheche & Partners, applicant's legal practitioners
Mtetwa & Nyambirai, respondent's legal practitioners